

EB2-NIW Post-Denial Strategy

Master-Class Post-Adjudication Framework & Strategic Litigation Tactics

Advanced Post-Adjudication Litigation Training System for the Long
Game

June 6, 2026

What to Do After a USCIS Denial: The Complete Post-Denial Workflow

The Correct 6-Step Post-Denial Sequence

The Master Sequence - APA ONLY at the VERY END

Step 1: Receive USCIS Denial **Step 2:** File Motion to Reopen (MTR) within 30 days **Step 3:** If USCIS delays MTR decision beyond 6 months → File Mandamus to force a decision on the MTR (NOT to challenge the denial) **Step 4:** After USCIS denies MTR → File Motion to Reconsider (MTC) within 30 days **Step 5:** After MTC denied → Send Pre-Litigation Notice (30-60 day warning to government) **Step 6:** ONLY IF pre-litigation fails → File APA Complaint in Federal District Court (challenging the MTC denial as the final agency action if you have else MTR denial as the final agency action)

CRITICAL: APA Complaint is the LAST Resort

What You DO NOT Do

NEVER file an APA Complaint challenging the original denial directly. Why not:

- The original denial is NOT the final agency action if you filed an MTR and MTC
- Courts will dismiss for failure to exhaust administrative remedies
- You must give the agency every opportunity to correct its errors first

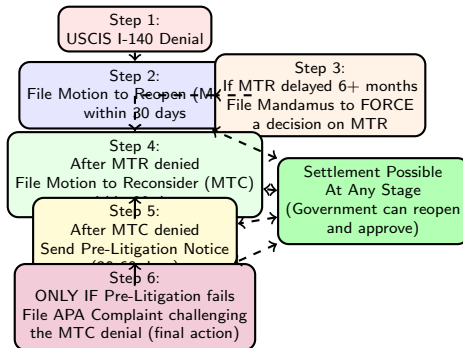
What You DO Instead

File APA Complaint ONLY after:

- 1 MTR filed and denied
- 2 MTC filed and denied
- 3 Pre-Litigation Notice sent and ignored

The APA Complaint challenges the MTC denial (the final agency action after all administrative remedies exhausted).

The Correct Flowchart: APA at the VERY END



What Mandamus Does (and Does NOT Do)

Mandamus is for DELAY, NOT for challenging the denial

What Mandamus DOES:

- Forces USCIS to issue a decision on your pending MTR
- Compels the agency to stop ignoring your case
- Gets your case moving after 6+ months of delay
- Can be filed in federal district court

What Mandamus DOES NOT Do:

- Cannot tell USCIS to approve your MTR
- Cannot reverse the underlying denial
- Cannot challenge the substance of the denial
- Cannot substitute the court's judgment for the agency's

Mandamus forces a decision - not a particular outcome. The decision could still be a denial.

What MTC Does (and Does NOT Do)

MTC is for Legal Errors, NOT New Evidence

What MTC DOES:

- Challenges legal errors in the original denial AND the MTR denial
- Argues the officer applied the wrong legal standard
- Cites binding precedent (*Dhanasar*, *Chawathe*)
- Can be filed within 30 days of MTR denial

What MTC DOES NOT Do:

- Cannot introduce new evidence (same record only)
- Cannot correct factual misunderstandings (use MTR for that)
- Cannot add post-filing achievements (Katigbak bar)

What APA Complaint Does (Final Step Only)

APA Complaint Challenges the MTC Denial as Final Agency Action

What APA Complaint DOES:

- Challenges the MTC denial as arbitrary, capricious, and contrary to law
- Asks the court to vacate the MTC denial and remand with instructions
- Filed ONLY after all administrative remedies exhausted
- Filed ONLY after pre-litigation notice ignored

What APA Complaint DOES NOT Do:

- Cannot be filed directly against the original denial
- Cannot introduce new evidence (court reviews the record)
- Cannot be filed without exhausting MTR and MTC first

The "Commitment Mistake" in MTR Explained

What Is the "Commitment Mistake"?

Many applicants file a Motion to Reopen without understanding a critical requirement: **You cannot file an MTR just because you disagree with the decision.** The MTR Standard (8

C.F.R. § 103.5(a)(2)):

- You must present **new, material facts**
- That were **not available and could not have been discovered** at the time of the original filing
- Supported by **affidavits or documentary evidence**

The "commitment mistake" is filing an MTR based only on legal disagreement, not on new facts.

Commitment Mistake: Legal Disagreement vs. New Facts

What USCIS Will Reject (Commitment Mistake)

"I disagree with the officer's conclusion that my endeavor lacks national importance. The officer should have found that my work qualifies."

Why this fails: This is a legal disagreement, not a new fact. The officer already considered your evidence and disagreed. **What USCIS Will Accept (Proper MTR):**

"New expert declaration (Exhibit A) from Dr. Smith, who was not available at the time of filing, confirms that my quantitative methodology was fully operational prior to the filing date. This new evidence directly addresses the officer's finding that the endeavor lacked operational capability."

This is a new, material fact that existed but could not be presented earlier.

Why Mandamus Is Needed After MTR Filing

The Mandamus Step: When USCIS Won't Decide

After you file a Motion to Reopen (MTR), USCIS may:

- Sit on your motion for 6, 9, 12+ months
- Ignore your status inquiries
- Leave you in administrative limbo

Without Mandamus:

- You cannot move to the next step (MTC or federal court)
- Your case is stuck indefinitely
- USCIS has no legal obligation to decide quickly (no statutory deadline)

Mandamus is the tool to force USCIS to issue a decision on your pending MTR.

Mandamus Timeline: When to File

Strategic Timing for Mandamus After MTR

Time Since MTR Filing	Recommended Action
0-3 months	Normal processing; wait
3-4 months	Send first status inquiry via phone/email
4-5 months	Send second status inquiry (written)
5-6 months	Send formal pre-mandamus notice to USCIS
6-8 months	File Mandamus complaint in federal court
8-12 months	Strong mandamus case (delay clearly unreasonable)
12+ months	Very strong mandamus case; likely to succeed

MTC: Challenge Both Denials

Bundled Legal Challenges in MTC

Your Motion to Reconsider should challenge: **Original I-140 Denial Errors:**

- Heightened standard error (field domination requirement)
- Evidentiary fragmentation
- Ignored expert opinion letters
- Prospective vs. realized impact confusion

MTR Denial Errors:

- Misapplication of *Matter of Katigbak*
- Failure to recognize clarifying evidence as permissible
- Categorically rejecting new expert letters
- Arbitrary dismissal of pre-filing documentation

A single MTC can (and should) challenge both denials simultaneously.

Pre-Litigation Notice: What It Is

Definition and Purpose

A Pre-Litigation Notice is a formal written communication sent to the government before filing a lawsuit. **Purpose:**

- Notifies the government of your intent to sue
- Summarizes the legal errors in the agency's decisions
- Requests that the agency cure the errors within a specified timeframe
- Creates a record of good-faith effort to resolve without litigation
- Required by some courts before filing pro se

Sent to:

- DHS Secretary
- USCIS Director
- Service Center Director
- U.S. Attorney for your district
- Attorney General of the United States

Why the Pre-Litigation Notice Works

The Psychology of the Notice

Why the government responds to pre-litigation notices:

- **DOJ attorneys hate unnecessary lawsuits.** They would rather settle a clear case than spend months litigating.
- **Agencies have settlement authority.** USCIS can voluntarily reopen and approve a case without admitting error.
- **Court dockets are crowded.** Judges appreciate parties who try to resolve disputes before filing.
- **The notice creates a record.** If the government ignores the notice, that becomes evidence of bad faith in court.

A well-crafted pre-litigation notice is often sufficient to get a denial reopened without ever filing a lawsuit.

What This Course Is (And Is Not)

Course Purpose

This course is NOT designed to promise that a denial will be overturned. Instead, this course teaches:

- Understanding the downstream impact of denials and their systemic consequences.
- Advanced strategies to mitigate structural timeline harm and protect your immigrant intent profile.
- Navigating post-denial remediation options, regulatory timelines, and jurisdictional safeguards.
- Executing precise litigation pressure to force favorable local actions outside of an appellate vacuum.

Legal Disclaimer: The instructor is not a licensed attorney, and this material does not constitute explicit legal advice. This is an informational framework mapping out procedural mechanics under 8 C.F.R. and 5 U.S.C.

The Psychology Behind a USCIS Denial

Why Officers Deny When They Could Approve

Understanding the adjudicator's mindset is critical to crafting an effective response:

- **Cover Your Tracks Culture:** Officers face internal audits. Denying a borderline case creates less professional risk than approving one that later gets flagged.
- **Template-Driven Denials:** Many denials use boilerplate language from previous cases. The officer may have applied a standard template without deeply analyzing your specific evidence.
- **Lack of Subject Matter Expertise:** Officers are generalists. They may not understand technical fields like quantitative finance, AI architecture, or specialized engineering.
- **Time Pressure:** Officers handle hundreds of files. They may spend 15-30 minutes on a petition that represents years of your work.

Understanding this psychology helps you write briefs that overcome their natural hesitation.

The Difference Between Legal Error and Factual Disagreement

Two Types of Denial Problems

Legal Error (Winnable via MTC/APA):

- Officer applied the wrong legal standard (e.g., required "field domination" for NIW)
- Officer ignored binding precedent (*Dhanasar*, *Chawathe*)
- Officer considered factors forbidden by regulation
- Officer failed to provide reasoned explanation for rejecting evidence

Factual Disagreement (Harder to Win):

- Officer simply disagrees with your interpretation of the evidence
- Officer believes your evidence is insufficient (weight, not type)
- Officer questions your credibility or the credibility of your experts

Legal errors are much easier to overturn than factual disagreements.

Why Denials Are "Sticky" and Dangerous

Collateral Consequences of a Denial

1. Credibility Perception and History Tracking:

- USCIS officers consistently retrieve historical petition patterns from internal databases before evaluating a new filing.
- A standing denial establishes an adverse baseline record, increasing psychological barriers for subsequent adjudicators.

2. Parallel Filings / Future Category Adjustments:

- Moving from an EB-2 NIW profile to an EB-1A profile post-denial signals an inconsistent evidentiary pivot to the center.
- Adjudicators scrutinize the sudden escalation from "national importance" to "extraordinary ability."

3. Permanent Disclosure Mandates:

- Statutory forms such as the I-485 Adjustment of Status and N-400 Naturalization explicitly require lifetime disclosure of all prior immigrant petition denials.

Deep Dive: What "National Importance" Actually Means

Deconstructing Prong 1 of *Matter of Dhanasar*

What USCIS Can Require:

- The endeavor has broader implications beyond a single employer or location
- The endeavor impacts a field that is nationally significant (finance, AI, cybersecurity, healthcare, education)
- The endeavor has potential for future impact (prospective standard)

What USCIS Cannot Require (Common Errors):

- Nationwide adoption or industry-wide transformation (reserved for EB-1A)
- Proof of immediate commercial success or revenue generation
- Letters from government agencies (though helpful, not required)
- Quantifiable metrics of already-demonstrated impact

Many denials collapse because the officer silently imported EB-1A standards into an EB-2 NIW review.

Deep Dive: What "Well-Positioned" Actually Means

Deconstructing Prong 2 of *Matter of Dhanasar*

What USCIS Can Require:

- Education, training, and experience in the field
- Progress toward the endeavor (preliminary work, publications, prototypes)
- Plan for executing the endeavor (timeline, milestones)

What USCIS Cannot Require (Common Errors):

- A formal job offer or specific position title
- Proof that the endeavor has already succeeded
- Third-party funding or venture capital backing
- Employer sponsorship or institutional affiliation

Self-petitioners are explicitly permitted under 8 C.F.R. § 204.5(k)(4)(ii).

Deep Dive: What "Balancing Test" Actually Means

Deconstructing Prong 3 of *Matter of Dhanasar*

Factors Favoring a Waiver:

- The endeavor is so urgent that waiting for labor certification would harm U.S. interests
- The nature of the work makes standard job testing impossible (e.g., self-employment, research, entrepreneurship)
- The petitioner has unique qualifications that cannot be easily replicated

Common Misapplications:

- Requiring proof that no U.S. worker could perform the role
- Applying the PERM labor certification standard (different framework)
- Demanding employer sponsorship when self-petitioning

The balancing test is the most subjective prong and often the easiest to challenge.

Evidentiary Standings: Denial vs. RFE vs. NOID

Structural Definitions under 8 C.F.R.

Adjudicative Action	Procedural Meaning	Response Window
RFE (Request for Evidence)	Core eligibility gaps found; administrative processing active.	30 to 87 Days
NOID (Notice of Intent to Deny)	High-vulnerability stance; systemic defects that require structural remediation.	30 to 33 Days
Absolute Denial	File is administratively closed; no further voluntary evidence is accepted.	30 to 33 Days for initial legal action

The Closed-Door Rule: Once an absolute denial is recorded, a service center will reject informal letters or supplemental evidence packages. To force them to look at your evidence, you must formally invoke an active jurisdictional remedy.

Why AAO Appeals Have Low Success Rates

Statistical Reality of Administrative Appeals

Published AAO Data (Typical Year):

- EB-1A/EB-2 NIW appeals: 85-90% affirmed (denial sustained)
- 5-10% remanded (sent back to service center for reconsideration)
- 2-5% reversed (outright approval)

Why AAO Affirms Most Denials:

- Deferential standard of review (agency deference to its own officers)
- No new evidence permitted (you cannot fix gaps in the record)
- AAO is part of USCIS (institutional bias toward affirming)
- AAO lawyers are trained to find alternative grounds to sustain the denial

Statistical reality: AAO is not designed to overturn denials; it is designed to review legal consistency.

The AAO's Lack of Settlement Authority

Why AAO Cannot Help You Negotiate

What AAO Cannot Do:

- Cannot engage in settlement discussions
- Cannot issue conditional approvals
- Cannot hold cases in abeyance for you to submit new evidence
- Cannot offer a "pathway to approval" with conditions

What Federal Court Can Do:

- DOJ attorneys have settlement authority
- Cases can be resolved via consent decree
- Government can voluntarily remand to service center with instructions to approve
- Your attorney can negotiate directly with government counsel

The AAO is a one-way door. Federal court is a two-way negotiation.

The AAO vs. Local MTR: Strategic Comparison

Decision Matrix for Choosing Your Path

Factor	Local MTR	AAO Appeal
New evidence allowed	YES	NO
Settlement possible	YES (with DOJ pressure)	NO
Timeline to decision	3-6 months	6-12+ months
Success rate (with strong evidence)	Moderate-High	Low
Preserves federal court option	YES	YES (after exhaustion)
Cost	Lower	Lower

MTR is almost always the better first move. AAO is a last resort.

Motion to Reopen (MTR): Legal Architecture

Regulatory Framework: 8 C.F.R. § 103.5(a)(2)

An MTR must satisfy a strict evidentiary threshold to be accepted by the local service center:

- 1 **Presentation of New, Material Facts:** Must articulate factual changes or clarifications that directly target the core of the denial.
- 2 **Documentary Verification:** Must be supported by affidavits, newly rendered expert interpretation letters, or objective corporate documents.
- 3 **The Discoverability Rule:** Must show that the evidence was not previously submitted to the record or readily discoverable during initial steps.

Strategic Integration: Submitting clarifying expert evaluation letters through an MTR addresses the regulatory requirement locally while establishing a strong record for your Pre-Litigation file.

When to File MTR vs. The Matter of Katigbak Trap

Evaluating Your Evidentiary Posture

Favorable Scenarios for an MTR:

- Upgraded expert opinion letters explaining projects completed *prior* to your filing date.
- Hard copies of peer-reviewed indexing or university database profiles documenting your citation count exactly as it stood on the day you applied.
- Specialized blueprints or corporate deployment logs clarifying technical details the officer misread.

The Fatal Flaw (Matter of Katigbak, 14 I&N Dec. 45):

- **You cannot use post-filing achievements.** If you publish a new article, clear a new citation milestone, or receive a new award *after* your original filing date, it is legally barred from saving that specific petition.

The Katigbak Rule Explained: What Is and Isn't Allowed

Matter of Katigbak (14 I&N Dec. 45) - Key Holdings

What Katigbak Prohibits:

- Evidence of achievements that occurred **after** the filing date
- Post-filing publications, citations, awards, or job offers
- Any evidence that did not exist at the time of filing

What Katigbak Does NOT Prohibit:

- Clarifying evidence about facts that existed at the time of filing
- Expert letters explaining why your pre-filing work has national importance
- Documentation of projects that were underway at filing
- Retrospective analysis of pre-filing achievements

The distinction is between *new facts* (not allowed) and *clarifying explanations of existing facts* (allowed).

Using the Clarifying Expert Letter to Bypass Katigbak

Strategic Use of Post-Denial Expert Opinions

Prohibited (Violates Katigbak):

"Dr. Smith published a new paper in June 2025 (after denial) proving his methodology works."

Permissible (Clarifies Existing Facts):

"Dr. Smith's methodology, fully developed and operational as of March 2025 (before filing), has been independently reviewed by experts who confirm its national importance. Attached Exhibit A is a declaration from Dr. Jones explaining why the pre-existing methodology has broader implications for U.S. financial stability."

The difference: You are not introducing new achievements. You are introducing expert interpretation of achievements that already existed.

Anatomy of an MTR Package

Structural Filing Checklist for Local Service Centers

- ➊ **Form I-290B:** Executed with exact fee variations or authorized fee waiver documents.
- ➋ **Primary Cover Letter:** Formally detailing the requested local administrative actions.
- ➌ **Legal Brief:** Methodically proving that the newly introduced facts resolve the officer's doubts.
- ➍ **Indexed Exhibit Indexes:** Structured sequentially (Exhibit A-1, A-2, B-1...) to maximize readability under local file management conditions.
- ➎ **The Target Denial Notice:** A complete copy of the underlying adverse USCIS decision attached at the back of the brief.

Logistical Rejection Notice: Minor clerical errors (missing a signature line or utilizing outdated fee rules) will cause an immediate rejection by the mailroom intake, wasting your 30-day window.

Motion to Reconsider (MTC): Legal Standard

Regulatory Framework: 8 C.F.R. § 103.5(a)(3)

An MTC targets structural legal mistakes made by the adjudicating officer:

- 1 **Precise Legal Errors:** Must show exactly where the officer's analysis deviated from the law.
- 2 **Binding Authority Alignment:** Must be supported by specific precedent decisions, statutory text, or federal regulations.
- 3 **The Existing Record Rule:** Evaluated strictly on the file as it stood on decision day. **No new factual evidence, letters, or data points are allowed under an MTC.**

The Combined Strategy: Select the option on Form I-290B for a **Combined Motion to Reopen and Reconsider (MTR/MTC)**. This allows you to introduce new clarifying expert letters while simultaneously addressing the officer's legal errors.

MTC Target: Common Legal Misapplications

Exposing Systemic Violations in the I-140 Adjudication

- 1 **The Heightened Standard Error:** Demanding proof of "field domination" or "immediate nationwide economic return" under the first prong of *Matter of Dhanasar*. This illegally transforms a standard preponderance threshold into an EB-1A level hurdle.
- 2 **Evidentiary Fragmentation:** Separating a cohesive, integrated analytical framework into isolated pieces, rather than evaluating its prospective impact holistically.
- 3 **Arbitrary Expert Rejection:** Discounting authoritative opinion letters from industry leaders without providing a reasoned, fact-based justification in the record.

Additional Legal Errors to Challenge in an MTC

More Common I-140 Adjudication Errors

- 1 **The "Job Offer" Error:** Requiring a specific position title or employer when the NIW category explicitly permits self-petitioning (8 C.F.R. § 204.5(k)(4)(ii)).
- 2 **The "Realized Impact" Error:** Demanding proof of already-demonstrated nationwide impact when *Dhanasar* explicitly states the inquiry is "prospective."
- 3 **The "Local Impact Only" Error:** Concluding that because the endeavor's primary impact is in one area, it lacks national importance, ignoring that broader implications can extend beyond that area.
- 4 **The "Normal Job Duties" Error:** Reducing specialized, innovative work to "normal job duties" of a particular occupation without analyzing the specific endeavor.
- 5 **The "Government Letter" Error:** Demanding formal government interest letters while ignoring actual government citations (Federal Reserve, Science.gov).

FOIA: Exposing the Internal Agency Mindset

Freedom of Information Act (5 U.S.C. § 552) Application

Why FOIA is a Vital Tool for Your Pre-Litigation File:

- Extracts internal adjudicator worksheets, supervisory log books, and specific metadata trails.
- Identifies whether the officer relied on boilerplate text or cut-and-pasted language from completely unrelated denials.
- Pinpoints exactly where the reviewer's attention faltered during internal routing.

Procedural Action Item: Submit your FOIA request digitally via FIRST or the direct DHS portal immediately upon receiving a denial notice. This record forms the core of your federal court filing.

What FOIA Can Reveal About Your Denial

Internal Documents You Can Obtain

Adjudicator Worksheets:

- The officer's checklist of eligibility criteria
- Notes on what evidence was reviewed
- Timestamps showing how long the officer spent on your case

Supervisory Review Notes:

- Comments from senior officers who reviewed the denial
- Instructions to the adjudicator on how to frame the denial

Email Communications:

- Internal emails discussing your case
- Requests for additional information between officers

System Logs:

- Dates when your file was accessed
- Which officers viewed your file and when

[This information can reveal procedural errors or improper influences.](#)

FOIA Request Standard Text Template

Sample Targeted Content for High-Skill Adjudication Files

FOIA Request – Internal Adjudication Records for Form I-140

Pursuant to the Freedom of Information Act (5 U.S.C. § 552), I request immediate electronic access to the complete administrative record, including all internal notes, evaluator worksheets, supervisor review lines, and communication logs generated during the evaluation of Form I-140, Receipt Number [INSERT NUMBER], denied on [INSERT DATE].

This request specifically targets the non-exempt internal adjudicator tracking metrics that show the explicit evaluation steps applied to the Petitioner's proposed endeavor.

The Pre-Litigation Notice: Creating the Way Out I

Choreographing the Opportunity to Cure

Before filing a federal suit, send a formal **Pre-Litigation Notice and Opportunity to Cure** via USPS Certified Mail to the DHS Secretary, USCIS Director, and the local U.S. Attorney's Office. **Core Elements of the Notice:**

- Identifies the precise violations of the Administrative Procedure Act (5 U.S.C. § 706) present in the MTC denial.
- States clearly that a Form I-290B Motion to Reconsider was filed and denied.
- Informs the government that if the error is not cured within a 30-to-60-day window, a federal lawsuit will be filed.

The Pre-Litigation Notice: Creating the Way Out II

Actual Language Template – Demand and Notice

“This letter serves as formal Pre-Litigation Notice and Opportunity to Cure regarding the arbitrary and capricious denial of the Petitioner’s Motion to Reconsider.

The agency’s reliance on extra-legal criteria violates the Administrative Procedure Act, 5 U.S.C. § 706. The Motion to Reconsider (filed [DATE]) was denied on [DATE]. If the agency fails to exercise its authority to vacate the unlawful denial within forty-five (45) days, Plaintiff will initiate formal litigation in United States District Court seeking declaratory and injunctive relief against the MTC denial as the final agency action.”

APA Complaint: Final Step After Pre-Litigation Fails

When to File APA Complaint - ONLY at the VERY END

Prerequisites before filing APA Complaint:

- 1 MTR filed and denied
- 2 MTC filed and denied
- 3 Pre-Litigation Notice sent (30-60 days)
- 4 Government ignored or refused to cure

What the APA Complaint challenges:

- The MTC denial as the final agency action
- NOT the original denial (that is not final after MTR/MTC)

APA Litigation: Standard of Review

How Courts Review Agency Decisions

The Arbitrary and Capricious Standard (5 U.S.C. § 706(2)(A)):

- Court asks: Did the agency articulate a rational connection between the facts found and the decision made?
- Did the agency consider all relevant factors?
- Did the agency ignore evidence that contradicted its conclusion?
- Did the agency provide a reasoned explanation for rejecting evidence?

The Contrary to Law Standard (5 U.S.C. § 706(2)(B)):

- Court asks: Did the agency apply the correct legal standard?
- Did the agency follow its own regulations and precedent?
- Did the agency exceed its statutory authority?

Courts give some deference to agencies, but not when they ignore their own regulations or binding precedent.

APA Complaint Structure (Detailed)

Required Sections for a Federal APA Complaint

- ➊ **Caption and Parties:** Plaintiff (you) vs. Federal Defendants (sued in official capacity)
- ➋ **Jurisdiction and Venue:** 28 U.S.C. § 1331 (federal question), 5 U.S.C. § 702 (APA), 28 U.S.C. § 1391(e) (venue for suits against officers)
- ➌ **Factual Background:** Chronological narrative of your case (filing, RFE, response, denial, MTR, MTR denial, MTC, MTC denial)
- ➍ **Administrative Exhaustion:** Statement that you have exhausted all administrative remedies (MTR and MTC filed and denied)
- ➎ **Legal Claims (Counts):**
 - Count 1: Violation of APA (arbitrary and capricious - MTC denial)
 - Count 2: Violation of APA (contrary to law - MTC denial)
- ➏ **Prayer for Relief:** Vacate MTC denial, remand with instructions
- ➐ **Exhibits:** Denial notices, MTR denial, MTC denial, Pre-Litigation Notice

Actual Language Template – APA Complaint Claims for Relief I

Unabridged Prayer for Relief (Final Step Only)

WHEREFORE, Plaintiff respectfully requests that this Court:

- A. Declare that Defendant's denial of Plaintiff's Motion to Reconsider dated [MTC DENIAL DATE] is arbitrary, capricious, an abuse of discretion, and not in accordance with law under 5 U.S.C. § 706(2)(A);*
- B. Declare that Defendant's denial of Plaintiff's Motion to Reconsider is contrary to law under 5 U.S.C. § 706(2)(B);*
- C. Vacate the denial of Plaintiff's Motion to Reconsider (Receipt No. [NUMBER]);*
- D. Remand this matter to USCIS for a lawful adjudication of the underlying Form I-140 EB-2 NIW petition consistent with Matter of Dhanasar, 8 C.F.R. § 204.5(k), and the Administrative Procedure Act;*
- E. Retain jurisdiction over this matter to ensure strict compliance with the Court's orders; and*
- F. Grant such other and further relief as this Court deems just, equitable, and proper.*

Note: The APA Complaint challenges the MTC denial, NOT the original I-140 denial.

Decision Matrix: Selecting Your Path (Part 1)

Remediation Framework Based on Evidentiary Posture

Evidentiary Posture	Prescribed Action Path
New expert letters or filing-date metrics are available.	File a local Motion to Reopen (MTR) immediately to establish your settlement baseline.
Clear legal misapplication on the existing record with no new facts.	File a Motion to Reconsider (MTC) to challenge legal errors.

Decision Matrix: Selecting Your Path (Part 2)

Remediation Framework Based on Timeline Posture

Evidentiary Posture	Prescribed Action Path
Local center refuses to rule or stalls the pending MTR for 6+ months.	Issue a formal Mandamus to force a decision on the MTR.
MTC denied and Pre-Litigation Notice ignored.	File APA Complaint challenging the MTC denial as final agency action.
Considering an AAO Appeal out of standard reflex.	Avoid entirely. The AAO has no out-of-court settlement authority and completely kills your local leverage.

Common Mistakes That Destroy Cases

Fatal Post-Denial Mistakes to Avoid

- ❶ **Filing an AAO Appeal out of reflex:** This locks your case file in an appellate queue for months where local settlement is impossible.
- ❷ **Filing an MTC alone when you need to add new letters:** Because an MTC strictly forbids new facts, adding evidence causes an automatic, unappealable dismissal.
- ❸ **Filing an APA Complaint directly against the original denial:** Courts will dismiss for failure to exhaust administrative remedies.
- ❹ **Not exhausting MTR and MTC before APA:** The original denial is NOT the final agency action if you have pending motions.

Additional Common Mistakes to Avoid

More Fatal Errors

- ❶ **Missing the 30-day deadline:** No extensions. If you miss it, your only option is to refile a new I-140.
- ❷ **Sending your MTR to the wrong address:** Different service centers handle different case types. Check USCIS website before mailing.
- ❸ **Using the wrong fee amount:** USCIS fees change periodically. Check the G-1055 fee schedule on the day you mail.
- ❹ **Forgetting to sign Form I-290B:** Unsigned forms are rejected immediately, and you may miss the deadline before resubmitting.
- ❺ **Not including proof of service:** You must show you served copies on all relevant government offices.
- ❻ **Filing without a legal brief:** Form I-290B alone is insufficient. You must attach a detailed legal argument.

Case Study: The Complete Sequence in Action

Real Case Example

Timeline:

- August 29, 2025: I-140 EB2-NIW Denied
- September 21, 2025: MTR filed (within 30 days)
- March 2026: USCIS still no decision on MTR (6+ months)
- April 2026: Mandamus filed to force MTR decision
- May 11, 2026: USCIS denies MTR (forced by Mandamus)
- June 1, 2026: MTC filed challenging legal errors (within 30 days)
- July 15, 2026: USCIS denies MTC
- August 1, 2026: Pre-Litigation Notice sent (60 days)
- October 1, 2026: No response - APA Complaint filed challenging MTC denial
- December 2026: Government settles - remands for approval

Quick Reference: Key Deadlines Summary

Critical Post-Denial Deadlines

Action	Deadline
File MTR/MTC/AAO (within U.S.)	30 days from denial date
File MTR/MTC/AAO (outside U.S.)	33 days from denial date
File Mandamus (to force MTR decision)	6+ months after MTR filing
File MTC after MTR denial	30 days from MTR denial
Send Pre-Litigation Notice	After MTC denial
File APA Complaint	After Pre-Litigation Notice ignored (30-60 days later)

The 30-day

deadlines are absolute and cannot be extended.

Quick Reference: Evidence Hierarchy

What Evidence Matters Most

Evidence Type	Persuasive Weight
.gov citations (Federal Reserve, Science.gov, ERIC)	Highest
.edu citations (Harvard, MIT, Stanford)	Very High
Expert opinion letters from Ph.D.s	High
Peer-reviewed journal publications	High
Citation counts (Google Scholar, Scopus)	Medium-High
Peer review certificates	Medium
Conference presentations	Medium
Blog posts or non-peer-reviewed articles	Low

A single .gov

citation can be worth dozens of regular journal citations.

The Strategic Takeaways (Corrected)

Final Core Paradigms

- **Denials are not final.** Most denials contain legal errors that can be challenged.
- **Local MTR keeps your case local.** The service center can reopen if you give them a reason.
- **Mandamus is for DELAY only.** Use it to force a decision on your MTR, not to challenge the denial.
- **MTC is for legal errors.** Use it to challenge wrong standards, fragmentation, and ignored evidence.
- **AAO is a trap.** It offers no settlement authority and low reversal rates.
- **FOIA reveals internal errors.** Use it to see what the officer actually wrote.
- **Pre-litigation notices create leverage.** The government will settle rather than litigate clear errors.
- **APA Complaint is the LAST step.** Only file after MTR denied, MTC denied, and Pre-Litigation Notice ignored.

Build your local record. Apply federal leverage. Force rapid approvals.

Closing Remarks

Final Words of Encouragement

Remember the Sequence:

- 1 Denial → MTR (30 days)
- 2 MTR delayed 6+ months → Mandamus to force decision
- 3 MTR denied → MTC (30 days)
- 4 MTC denied → Pre-Litigation Notice (30-60 days)
- 5 Pre-Litigation ignored → APA Complaint (challenging MTC denial)

Do NOT:

- File APA Complaint against original denial
- Skip MTR or MTC before APA
- Use AAO appeal (loses local leverage)

This course provides the framework. Your diligence and persistence will determine the outcome.
The best time to start your post-denial strategy was yesterday. The second best time is now.

Your Complete Post-Denial Strategy

- Act within 30 days
- File FOIA immediately
- File MTR with new facts (not just disagreement)
- If MTR delayed 6+ months → Mandamus to force decision
- After MTR denied → File MTC (30 days)
- After MTC denied → Pre-Litigation Notice
- ONLY after Pre-Litigation fails → File APA Complaint challenging MTC denial

Good luck with your appeal or lawsuit! This presentation is for educational purposes only. Consult a qualified immigration attorney for legal advice specific to your case.

Key Strategic Option: Withdraw MTR and File APA After 60 Days

What If USCIS Never Denies Your MTR?

Scenario:

- You filed MTR within 30 days of denial
- You sent Pre-Litigation Notice (60 days)
- USCIS still has NOT denied your MTR after 60+ days
- Your MTR is just sitting there - no decision

Your Strategic Move:

- You can **WITHDRAW** your pending MTR
- Then file APA Complaint directly
- You do **NOT** need a denial on the MTR to file APA
- The 60-day Pre-Litigation Notice is enough

You do **NOT** have to wait for them to deny your MTR. You gave them 60 days. They ignored you. That is enough.

Withdraw MTR and File APA: The Legal Basis

Why You Can Withdraw MTR and File APA Directly

The Legal Reasoning:

- 1 You filed MTR in good faith to exhaust administrative remedies
- 2 You sent Pre-Litigation Notice giving them 60 days to act
- 3 They CHOSE not to act on your MTR
- 4 By not acting, they have constructively denied relief
- 5 You can withdraw the MTR (Form I-290B withdrawal request)
- 6 The withdrawal removes the pending motion from their jurisdiction
- 7 You then file APA Complaint challenging the ORIGINAL denial (since MTR is gone)

Result:

- Same as waiting for MTR denial - but FASTER
- You control the timeline, not USCIS
- They cannot hide behind a pending MTR forever

Timeline Comparison: Withdraw MTR vs. Wait for Denial

Which Path Is Faster?

Wait for MTR Denial	Withdraw MTR + File APA
File MTR (Day 1-30)	File MTR (Day 1-30)
Send Pre-Litigation Notice (Day 60)	Send Pre-Litigation Notice (Day 60)
Wait for USCIS to deny MTR (3-12 months)	Wait 60 days after notice (Day 120)
File APA after denial (Day 120-400)	Withdraw MTR (Day 120)
	File APA same day (Day 120)
Total: 4-14 months to APA	Total: 4 months to APA

Withdrawing

MTR saves you MONTHS of waiting. USCIS uses pending MTRs to delay. Don't let them.

How to Withdraw Your MTR

Simple Process to Withdraw Form I-290B

Step 1 - Write Withdrawal Letter:

*"Dear USCIS Texas Service Center,
Please withdraw my pending Motion to Reopen (Form I-290B) filed on [DATE],
Receipt No. [NUMBER].
I have provided a 60-day Pre-Litigation Notice (attached). USCIS has not acted on
my motion within that timeframe. I am withdrawing my motion to proceed with
federal litigation.
Please confirm withdrawal in writing.
Sincerely, [Your Name]"*

**Step 2 - Send to same address where you filed MTR Step 3 - Keep proof of withdrawal
(certified mail receipt) Step 4 - File APA Complaint after withdrawal confirmed**

The Complete Flexible Strategy: Two Paths to APA

Path A: Wait for MTR Denial (If They Act Quickly)

- 1 File MTR
- 2 Send Pre-Litigation Notice (60 days)
- 3 USCIS denies MTR within 60 days
- 4 File APA challenging MTR denial

Path B: Withdraw MTR and File APA (If They Delay)

- 1 File MTR
- 2 Send Pre-Litigation Notice (60 days)
- 3 USCIS does NOT act on MTR after 60 days
- 4 Withdraw MTR
- 5 File APA challenging ORIGINAL denial (MTR withdrawn)

YOU choose the path based on how USCIS behaves. Either way, you file APA within 4-5 months of denial.

Why Voluntary Remand Fails in Both Paths

Government Cannot Ask for Voluntary Remand - Ever

Path A (MTR denied):

- You exhausted administrative remedies (MTR denied)
- You gave Pre-Litigation Notice (60 days)
- They had their chance. They denied you.
- Court will not give them voluntary remand - they already ruled

Path B (MTR withdrawn):

- You exhausted administrative remedies (you tried MTR, they ignored it)
- You gave Pre-Litigation Notice (60 days)
- They had their chance. They ignored you.
- You withdrew MTR because they refused to act
- Court will not give them voluntary remand - they had 60+ days to act

BOTH PATHS: They had 60 days Pre-Litigation Notice. BOTH PATHS: They cannot ask for voluntary remand now.

The 60-Day Pre-Litigation Notice Is Your Weapon

What the 60-Day Notice Accomplishes

It does **THREE** things:

1 Exhaustion of Remedies:

- Shows court you gave agency every chance to fix errors
- Whether they denied OR ignored, you exhausted

2 Blocks Voluntary Remand:

- They had 60 days to reconsider
- They cannot ask court for more time
- Judge will say: "You had 60 days. Rule on the merits."

3 Creates Litigation Record:

- Your notice details every legal error
- Their silence (or denial) is evidence of arbitrary conduct
- Court sees agency refused to engage in good faith

The 60-day notice is your most powerful litigation tool.

The Bottom Line: APA Forces Approval Within 60 Days

Summary of the Complete Strategy

Action	Timing
File MTR	Within 30 days of denial
Send Pre-Litigation Notice	Day 60 (after MTR filed)
Wait 60 days	Day 60-120
If MTR denied	File APA challenging MTR denial
If MTR ignored	Withdraw MTR, file APA challenging original denial
Government settles	Within 60 days of APA filing
Total time to approval	4-6 months from denial

Either way -

you control the timeline. Either way - they cannot ask for voluntary remand. Either way - they will approve within 60 days of APA.

The Danger of Voluntary Remand: Why You Must BLOCK It

Voluntary Remand = Government Gets Another Chance to Deny You

What is Voluntary Remand?

- Government asks court to send case back to USCIS for "another look"
- Court agrees and gives agency 30-90 days to reconsider
- USCIS reopens your case and reviews it AGAIN

The danger: USCIS can find NEW reasons to deny you that they didn't think of the first time.

Why this is TERRIBLE for you:

- You challenged a denial based on SPECIFIC legal errors
- On voluntary remand, USCIS can ignore those errors
- They can find NEW, different reasons to deny
- Now you have a SECOND denial with NEW grounds
- Your original APA arguments become MOOT (no longer applicable)
- You have to start OVER with a new challenge

How Voluntary Remand Hurts You: Real Example

Example: The Government Gets a Second Bite at the Apple

Original Denial:

- USCIS denied for: "lack of national importance under Prong 1"
- You filed APA arguing: "USCIS applied EB-1A standard to EB-2 NIW"

Government asks for Voluntary Remand:

- Court grants 60 days for USCIS to reconsider

USCIS on Remand (the danger):

- Instead of fixing Prong 1 error, they deny on NEW grounds
- New denial says: "Even if national importance exists, petitioner is NOT well-positioned (Prong 2)"
- Or: "Petitioner failed to prove balancing test (Prong 3)"

Result: You now have a NEW denial with NEW errors. Your original APA complaint is now moot. You must start over.

Why AAO is Equally Dangerous: Another Chance to Deny

AAO Appeal = Government Gets Even MORE Chances to Deny

What happens when you appeal to AAO:

- AAO reviews the SAME record (no new evidence allowed)
- But AAO can find ANY reason to sustain the denial
- They are NOT limited to the officer's original reasoning
- AAO lawyers are trained to find ALTERNATIVE grounds to deny

Why this is dangerous:

- Original denial had 2 errors (you identified them)
- AAO ignores those errors
- AAO finds 3 NEW errors you never anticipated
- Now you have an AAO decision with NEW denial grounds
- You cannot challenge the original denial anymore (AAO decision supersedes it)
- You must now challenge the AAO decision (harder standard of review)

AAO gives the government a SECOND chance to deny you with NEW reasons.

Why We AVOID AAO and BLOCK Voluntary Remand

The Strategic Rule: Never Give the Government Another Chance

What AAO does:

- Gives USCIS a SECOND bite at the apple
- Allows them to find NEW reasons to deny
- Takes 6-12+ months
- No settlement authority

What Voluntary Remand does:

- Gives USCIS ANOTHER chance to reconsider
- Allows them to find NEW reasons to deny
- Your original legal arguments become moot
- You have to start over with new challenge

Both AAO and Voluntary Remand = Government gets more chances to deny you. Our strategy: BLOCK voluntary remand. FORCE approval.

How to BLOCK Voluntary Remand (The Pre-Litigation Notice)

The Pre-Litigation Notice is Your Shield

Why the 60-day Pre-Litigation Notice BLOCKS voluntary remand:

- 1 You gave them 60 days to reconsider BEFORE filing APA
- 2 During those 60 days, they could have reopened and approved
- 3 They CHOSE not to act (or denied you)
- 4 They cannot now ask the court for what they already refused
- 5 Court will say: "You had 60 days. You didn't act. No voluntary remand."

The legal argument in your opposition to voluntary remand:

"The government requests voluntary remand. However, Plaintiff provided a 60-day Pre-Litigation Notice (Exhibit A) before filing this action. The agency had 60 days to reconsider its decision. It declined to act. The agency should not receive a second opportunity to reconsider after forcing Plaintiff to file a federal lawsuit. The Court should deny voluntary remand and rule on the merits."

What Happens If You DO NOT Block Voluntary Remand

The Nightmare Scenario (Avoid This!)

Timeline if you allow voluntary remand:

- 1 You file APA Complaint (good)
- 2 Government asks for voluntary remand (bad)
- 3 Court grants 60 days (bad)
- 4 USCIS reopens your case (neutral)
- 5 USCIS finds NEW reason to deny (TERRIBLE)
- 6 USCIS issues SECOND denial (TERRIBLE)
- 7 Your original APA complaint is now MOOT
- 8 You must file NEW APA complaint challenging SECOND denial
- 9 Government asks for voluntary remand AGAIN (cycle repeats)

You can get stuck in an endless loop of remands and new denials. Each cycle gives USCIS more chances to find new reasons to deny you.

The Cumulative Error Problem: More Chances = More Denial Reasons

Each Round of Review Adds New Denial Grounds

How the government builds a stronger case against you:

Round	New Denial Reasons Added
Original Denial	Error A, Error B
After MTR Denial	Error C, Error D (new reasons discovered)
After AAO Appeal	Error E, Error F, Error G
After Voluntary Remand #1	Error H, Error I
After Voluntary Remand #2	Error J, Error K, Error L

Each time the

government gets another chance, they find MORE reasons to deny you. Eventually, your file is full of so many denial reasons that approval becomes impossible. BLOCK every opportunity for them to get another chance. Force approval NOW.

Why We Do NOT Use AAO Appeal

AAO is a Trap - It Gives the Government More Denial Reasons

What AAO does:

- AAO reviews the SAME record
- But they can find ANY legal reason to sustain the denial
- They are NOT bound by the officer's original reasoning
- AAO decisions often introduce NEW legal theories for denial

Why this hurts you:

- Original denial had 2 errors
- AAO decision adds 3 NEW errors
- Now you have 5 errors to overcome
- Your original appeal arguments are now insufficient
- You must address ALL new errors in any future challenge

AAO transforms a simple case with 2 errors into a complex case with 5+ errors. Do NOT give them this opportunity.

The Correct Strategy: One Chance, Then Court

Give Them ONE Chance - Then Force a Decision

The correct sequence:

- ❶ **Denial** (they had their first chance)
- ❷ **MTR** (give them second chance with new evidence - optional, use only if you have new facts)
- ❸ **Pre-Litigation Notice (60 days)** (give them FINAL chance to cure)
- ❹ **APA Complaint** (if they ignore or deny)
- ❺ **BLOCK voluntary remand** (they already had 60 days)
- ❻ **Force court ruling on the merits**

What you DO NOT do:

- AAO Appeal (gives them unlimited new denial reasons)
- Voluntary remand (gives them another chance to deny)
- Endless MTR/MTC cycles (each denial adds new errors)

One chance. Then court. Block voluntary remand. Force approval.

Summary: AAO and Voluntary Remand Are Traps

The Core Strategic Principle

Tactic	Result
AAO Appeal	Government gets NEW denial reasons
Voluntary Remand	Government gets ANOTHER chance to deny
Endless MTR/MTC	Each denial adds NEW errors
Pre-Litigation Notice + APA	Blocks voluntary remand, forces approval

Every time the

government gets another chance, they find new reasons to deny you. Give them ONE chance. Then force a decision. Block voluntary remand. Approve.

Final Strategic Summary - Do NOT Give Them More Chances

The Complete Safe Strategy

- 1 **Denial** → File MTR within 30 days (ONLY if you have new facts)
- 2 **Do NOT file AAO appeal** (gives them new denial reasons)
- 3 **Send Pre-Litigation Notice (60 days)** - THIS IS THEIR FINAL CHANCE
- 4 **After 60 days, file APA Complaint**
- 5 **When they ask for voluntary remand, OPPOSE IT**
- 6 **Argue:** "They had 60 days pre-suit. They refused to act. No remand."
- 7 **Force court to rule on the merits**
- 8 **Government will settle and approve rather than lose**

Do NOT give them AAO. Do NOT give them voluntary remand. Each chance they get = more denial reasons added to your file. One chance. Then court. Block remand. Force approval.

Thank You - Go Win Your Case Without Giving Them More Chances

Your Complete Post-Denial Strategy

- MTR within 30 days (new facts only - optional)
- **NO AAO APPEAL** (gives them new denial reasons)
- Pre-Litigation Notice (60 days) - their FINAL chance
- File APA Complaint
- **BLOCK voluntary remand** (they already had 60 days)
- Force court ruling on merits
- Government will approve within 60 days

Remember: Every chance you give them = more reasons to deny you. Give them ONE chance. Then court. Block remand.

Approve. This presentation is for educational purposes only. Consult a

qualified immigration attorney for legal advice specific to your case.

Final Strategic Summary

The Complete Flexible Sequence

- ① **Denial** → File MTR within 30 days (with NEW facts)
- ② **After MTR filed** → Send Pre-Litigation Notice (60 days)
- ③ **Wait 60 days** → USCIS either denies MTR or ignores it
- ④ **If denied** → File APA challenging MTR denial
- ⑤ **If ignored** → Withdraw MTR, file APA challenging original denial
- ⑥ **Either way** → Government settles within 60 days of APA filing
- ⑦ **Result** → Your petition is APPROVED

Do NOT let them hide behind a pending MTR. Do NOT let them ask for voluntary remand (they had 60 days). Do NOT wait forever - withdraw and file APA. You control the timeline.

They will approve. Go win your case.

Your Complete Post-Denial Strategy

- MTR within 30 days (new facts only)
- Pre-Litigation Notice (60 days) - sent right after MTR
- Wait 60 days
- If MTR denied → File APA challenging MTR denial
- If MTR ignored → Withdraw MTR, file APA challenging original denial
- **Government will approve within 60 days of APA filing**
- **Total time from denial to approval: 4-6 months**

Good luck! You have the strategy. Now execute. This

presentation is for educational purposes only. Consult a qualified immigration attorney for legal advice specific to your case.